
MEMORANDUM

TO: Mayor Patrick Collins, and City Council
FROM: TJ Barttelbort, Purchasing Manager *TJB*
DATE: May 4, 2022
SUBJECT: Consideration to Purchase between the City of Cheyenne, and Thomson Reuters, for a Three (3) year software agreement to utilize the WestLaw Legal Research Platform for the City of Cheyenne Attorney's Office

This is a sole source purchase through Thomson Reuters, therefore no bids were requested (Sole Source Letter included).

This request is for a Three (3) year software agreement to utilize the WestLaw Legal Research Platform for the City of Cheyenne Attorney's Office.

WestLaw is the only online legal research platform that contains the resources and materials needed to operate the City Attorney's Office.

The total request purchase amount is \$83,216.24, split over three (3) years.

<i>WESTLAW</i>	<i>Monthly Fee</i>	<i>Annual Fee</i>
Year 1 (July 2022)	\$ 2,199.75	\$ 26,397.00
Year 2 (July 2023)	\$ 2,309.74	\$ 27,716.88
Year 3 (July 2024)	\$ 2,425.23	\$ 29,102.76
		\$ 83,216.64

Funding: 001-12-1210-40-21201 (General Fund / Dues & Subscriptions)



REQUEST FOR SOLE/SINGLE SOURCE PURCHASE

DIRECTIONS:

Complete this form for all purchase requests with a sole/single source vendor. Send to the Purchasing Office before purchasing the item(s) along with the letter from the vendor indicating they are the sole/single supplier. **If over \$34,999.99, attach a copy of the legal ad and place on council.**

Name: Stefanie Boster

Date: 5/2/2022

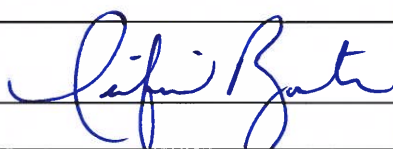
Division/Department: City Attorney

ITEM DESCRIPTION: Contract with Thomson Reuters for six licenses to access Westlaw online legal resources for the next three years beginning in July, 2022.

AMOUNT OF PURCHASE: \$83,216.64

STATE REASON FOR SOLE OR SINGLE SOURCE PURCHASE (CIRCLE ONE):

Westlaw is the only online legal research platform that contains the resources and materials needed to operate the City Attorney's office.

Signature of Requesting Individual: 

DIVISION/DEPARTMENT HEAD APPROVAL:

Name: Stefanie Boster, City Attorney

Date: 5/3/2022

COMMENTS: Included in the proposed Annual Budget for 2023.

THOMSON REUTERS SOLE SOURCE LETTER INCL. T&B

For Purchasing Office use only:

Sole/Single Source Letter Attached: Yes / No / NA

Legal Ad Attached: Yes / No / NA

Finance Dates: 5.16.22

City Council Dates: 5.9 & 5.23

Received On: 5.3.22



REQUEST TO PURCHASE OVER \$35,000.00

Consideration to Purchase between the City of Cheyenne, and Thomson Reuters, for a Three (3) year software agreement to utilize the WestLaw Legal Research Platform for the City of Cheyenne Attorney's Office. The total amount of the Contract over three (3) years is \$83,216.64. This is a sole source purchase, therefore no bids were requested.

This will be reviewed by the City Council Finance Committee on May 16, 2022 and voted on at the May 23, 2022 City Council meeting.

TJB TJ Barttelbort, Purchasing Manager
City of Cheyenne, Wyoming
(307) 773-1045

Published in: Wyoming Tribune-Eagle
Dates: May 6 & 13, 2022



Order Form

Order ID: Q-03155591

Contact your representative daron.grefthen@thomsonreuters.com with any questions. Thank you.

APPROVED

By Stefanie Boster at 4:56 pm, May 03, 2022

Sold To Account Address

Account #: 1000270244

CHEYENNE CITY ATTORNEY

CITY ATTORNEY

2101 ONEIL AVE RM 308

CHEYENNE WY 82001-3512 US

“Customer”

Shipping Address

Account #: 1000270244

CHEYENNE CITY ATTORNEY

CITY ATTORNEY

2101 ONEIL AVE RM 308

CHEYENNE WY 82001-3512 US

Billing Address

Account #: 1000270244

CHEYENNE CITY ATTORNEY

CITY ATTORNEY

2101 ONEIL AVE RM 308

CHEYENNE, WY 82001-3512

US

This Order Form is a legal document between Customer and

- A. West Publishing Corporation to the extent that products or services will be provided by West Publishing Corporation, and/or
- B. Thomson Reuters Enterprise Centre GmbH to the extent that products or services will be provided by Thomson Reuters Enterprise Centre GmbH.

A detailed list of products and services that are provided by Thomson Reuters Enterprise Centre GmbH and current applicable IRS Certification forms are available at: <https://www.tr.com/trorderinginfo>

West Publishing Corporation may also act as an agent on behalf of Thomson Reuters Enterprise Centre GmbH solely with respect to billing and collecting payment from Customer. Thomson Reuters Enterprise Centre GmbH and West Publishing Corporation will be referred to as “Thomson Reuters”, “we” or “our,” in each case with respect to the products and services it is providing, and Customer will be referred to as “you”, or “your” or “Client”.

Thomson Reuters General Terms and Conditions apply to all products ordered, except print and is located at <http://tr.com/TermsandConditions>. In the event that there is a conflict of terms between the General Terms and Conditions and this Order Form, the terms of this Order Form control. This Order Form is subject to our approval.

Thomson Reuters General Terms and Conditions for Federal Subscribers is located at <https://static.legalsolutions.thomsonreuters.com/static/Federal-ThomsonReuters-General-Terms-Conditions.pdf>. In the event that there is a conflict of terms between the General Terms and Conditions and this Order Form, the terms of this Order Form control. This Order Form is subject to our approval.

ProFlex Products See Attachment for details

Material #	Product	Monthly Charges	Minimum Terms (Months)
40757482	West Proflex	\$2,199.75	36

Minimum Terms

Your subscription is effective upon the date we process your order ("Effective Date") and Monthly Charges will be prorated for the number of days remaining in that month, if any. Your subscription will continue for the number of months listed in the Minimum Term column above counting from the first day of the month following the Effective Date. Your Monthly Charges during the first twelve (12) months of the Minimum Term are as set forth above. If your Minimum Term is longer than 12 months, then your Monthly Charges for each year of the Minimum Term are displayed in the Attachment to the Order Form.

Post Minimum Terms

At the end of the Minimum Term, we will notify you of any change in Monthly Charges at least 60 days before each 12-month term starts. Either of us may cancel the Post-Minimum Term subscription by sending at least 30 days written notice.

Federal Government Subscribers Optional Minimum Term. Federal government subscribers that chose a multi-year Minimum Term, those additional months will be implemented at your option pursuant to federal law.

Banded Product Subscriptions. You certify your total number of attorneys (partners, shareholders, associates, contract or staff attorneys, of counsel, and the like), corporate users, personnel or full-time-equivalent students is indicated in this Order Form. Our pricing for banded products is made in reliance upon your certification. If we learn that the actual number is greater or increases at any time, we reserve the right to increase your charges as applicable.

Miscellaneous

Applicable Law. If you are a state or local governmental entity, your state's law will apply and any claim may be brought in the state or federal courts located in your state. If you are a non-governmental entity, this Order Form will be interpreted under Minnesota state law and any claim by one of us may be brought in the state or federal courts in Minnesota. If you are a United States Federal Government Customer, United States federal law will apply and any claim may be brought in any federal court.

Charges, Payments & Taxes. You agree to pay all charges in full within 30 days of the date of invoice. You are responsible for any applicable sales, use, value added tax (VAT), etc. unless you are tax exempt. If you are a non-government customer and fail to pay your invoiced charges, you are responsible for collection costs including attorneys' fees.

Excluded Charges And Schedule A Rates. If you access products or services that are not included in your subscription you will be charged our then-current rate ("Excluded Charges"). Excluded Charges will be invoiced and due with your next payment. For your reference, the current Excluded Charges schedules are located in the below link. Excluded Charges may change from time-to-time upon 30 days written or online notice. We may, at our option, make certain products and services Excluded Charges if we are contractually bound or otherwise required to do so by a third party provider or if products or services are enhanced or if new products or services are released after the effective date of this ordering document. Modification of Excluded Charges or Schedule A rates is not a basis for termination under paragraph 10 of the General Terms and Conditions.

<http://static.legalsolutions.thomsonreuters.com/static/agreement/plan-2-pro-govt-agencies.pdf>

eBilling Contact. All invoices for this account will be emailed to your e-Billing Contact(s) unless you have notified us that you would like to be exempt from e-Billing.

Credit Verification. If you are applying for credit as an individual, we may request a consumer credit report to determine your creditworthiness. If we obtain a consumer credit report, you may request the name, address and telephone number of the agency that supplied the credit report. If you are applying for credit on behalf of a business, we may request a current business financial statement from you to consider your request.

Cancellation Notification Address. Send your notice of cancellation to Customer Service, 610 Opperman Drive, P.O. Box 64833, Eagan MN 55123-1803

Returns and Refunds. You may return a print product to us within 45 days of the original shipment date if you are not completely satisfied. Please see <http://static.legalsolutions.thomsonreuters.com/static/returns-refunds.pdf> or contact Customer Service at 1-800-328-4880 for additional details regarding our policies on returns and refunds.

Product Specific Terms. The following products have specific terms which are incorporated by reference and made part of this Order Form if they apply to your order. They can be found at <https://static.legalsolutions.thomsonreuters.com/static/ThomsonReuters-General-Terms-Conditions-PST.pdf>. If the product is not part of your order, the product specific terms do not apply. If there is a conflict between product specific terms and the Order Form, the product specific terms control.

- Campus Research
- Contract Express
- Hosted Practice Solutions
- ProView eBooks
- Time and Billing
- West km Software
- West LegalEdcenter
- Westlaw
- Westlaw Doc & Form Builder
- Westlaw Paralegal
- Westlaw Patron Access
- Westlaw Public Records

Government Non-Availability of Funds for Online, Practice Solutions or Software Products

You may cancel a product or service with at least 30 days written notice if you do not receive sufficient appropriation of funds. Your notice must include an official document, (e.g., executive order, an officially printed budget or other official government communication) certifying the non-availability of funds. You will be invoiced for all charges incurred up to the effective date of the cancellation.

For Law Enforcement Agencies and Correctional Facilities Only – No Inmate Westlaw or CLEAR Access (direct or indirect)

I certify, on behalf of Subscriber, that I understand and accept the security limits of Westlaw or CLEAR ; Subscriber's responsibility for controlling Westlaw, CLEAR, internet and network access; and, how Subscriber will be using Westlaw or CLEAR. I acknowledge Subscriber's responsibility for providing West with prompt written notice if Subscriber's type of use changes.

Only non-inmates/administrative staff will access Westlaw or CLEAR with no direct Westlaw research results provided to inmates (including work product created as part of inmates' legal representation) In no event shall anyone other than Subscriber's approved employees be provided access to or control of any terminal with access to Westlaw or Westlaw Data.

Functionality of Westlaw or CLEAR cannot and does not limit access to non-West internet sites. It is Subscriber's responsibility to control access to the internet.

Subscriber will provide its own firewall, proxy servers or other security technologies as well as desktop security to limit access to the Westlaw Or CLEAR URL and West software (including CD-ROM orders). Subscriber will design, configure and implement its own security configuration.

Subscriber will not use any data nor distribute any data to a third party for use, in a manner contrary to or in violation of any applicable federal, state, or local law, rule or regulation or in any manner inconsistent with the General Terms and Conditions.

Subscriber will maintain the most current version of the West software to access CD-ROM Products for security purposes.

Acknowledgement: Order ID: Q-03155591

Signature of Authorized Representative for order

Title

Printed Name

Date

This Order Form will expire and will not be accepted after 7/1/2022.



THOMSON REUTERS™

Attachment

Order ID: Q-03155591

Contact your representative daron.grefthen@thomsonreuters.com with any questions. Thank you.

Payment, Shipping, and Contact Information

Payment Method:

Payment Method: Bill to Account

Account Number: 1000270244

Order Confirmation Contact (#28)

Contact Name: BOSTER, STEFANIE

Email: sboster@cheyennecity.org

Shipping Information:

Shipping Method: Ground Shipping - U.S. Only

eBilling Contact

Contact Name STEFANIE BOSTER

Email sboster@cheyennecity.org

ProFlex Multiple Location Details

Account Number	Account Name	Account Address	Action
1000270244	CHEYENNE CITY ATTORNEY	2101 ONEIL AVE RM 308 CHEYENNE WY 82001-3512 US	New

ProFlex Product Details

Quantity	Unit	Service Material #	Description
1	Each	40757482	West Proflex
5	Attorneys	42077755	Westlaw All Analytical, Enterprise access, Government
5	Attorneys	41933492	Practical Law, Enterprise access, Government
5	Attorneys	41988413	Gvt - West LegalEdcenter For Government (Westlaw PRO™)
5	Attorneys	42510228	Westlaw Edge National Primary Law, Enterprise access, Government
5	Attorneys	41933475	Westlaw Litigation Collection, Enterprise access, Government

Account Contacts

Account Contact	Account Contact	Account Contact	Account Contact
First Name	Last Name	Email Address	Customer Type Description
STEFANIE	BOSTER	sboster@cheyennecity.org	EML PSWD CONTACT

Lapsed Products	
Sub Material	Active Subscription to be Lapsed
40757481	West Proflex

Charges During Minimum Term										
Material #	Product Name	Monthly Year 1 Charges	% incr Yr 1-2*	Monthly Year 2 Charges	% incr Yr 2-3*	Monthly Year 3 Charges	% incr Yr 3 4*	Monthly Year 4 Charges	% incr Yr 4-5*	Monthly Year 5 Charges
40757482	West Proflex	\$2199.75	5.00	\$2309.74	5.00	\$2425.23	N/A	\$N/A	N/A	\$N/A
Charges During Minimum Term										

Pricing is displayed only for the years included in the Minimum Term. Years without pricing in above grid are not included in the Minimum Term. Refer to your Order Form for the Post Minimum Term pricing.



Reed Flathmann
Government Dedicated Renewal
Specialist

610 Opperman Drive
Saint Paul, Minnesota 55123
Phone: 763-326-3782
Reed.flathmann@tr.com

May 3, 2022

Ms. Stefanie Boster
Cheyenne City Attorney
2101 Oneil Ave.
Cheyenne, WY 82001-3512

RE: Sole Source Designation—Thomson Reuters Westlaw Edge

Dear Ms. Boster:

Thomson Reuters is pleased to provide you with information concerning Westlaw. The purpose of this letter is to confirm that Thomson Reuters is the sole source provider for the exclusive content, features, and services listed herein.

West Publishing Corporation, a Thomson Reuters business, is the foremost provider of integrated information solutions to the U.S. legal market and has been providing research materials to the legal and professional community for more than 145 years.

Our newest offering, Westlaw Edge, provides the next generation of legal search, the most advanced citator service, the easiest way to see statutory changes, and integrated litigation analytics, all powered by state-of-the-art artificial intelligence and built upon more than 100 years of editorial enhancements.

Westlaw Edge provides access to the following exclusive features:

- **Quick Check** – Upload up to six documents and Quick Check will produce a report that includes recommendations for highly relevant authority that was not cited, a list of cited authority from within the document(s), and a side-by-side comparison between case quotes and the cited case language on Westlaw Edge.
- **WestSearch Plus**—Find immediate answers to thousands of types of legal questions and dynamically filter your results to only the most relevant resources. Only WestSearch Plus has sophisticated typeahead functionality that produces suggested questions across thousands of legal topics. Westlaw Edge is the only legal research solution that includes a legal search engine built upon editorial assets such as the West Key Number System, Westlaw Headnotes, Notes of Decisions and more to presents responsive text at the top of a result list rather than simply presenting a list with highlighted search terms.

- **KeyCite Overruling Risk**—Instantly know whether a case contains an implicitly invalidated statement of law. Westlaw Edge is the only legal research solution that includes warnings on implicitly overruled or abrogated cases even where the case does not cite to overruled authority. Westlaw Edge leverages state-of-the-art artificial intelligence, built upon more than 100 years of editorial enhancements, to provide significantly more accurate warnings.
- **Compare Capabilities**—Quickly understand how a statute or regulation has changed over time to easily see the most recent changes and compare any two versions instantly. Statutes Compare provides coverage for all statutory content with versions. In addition, Regulations Compare provides coverage for federal regulations as well as state regulations in 43 states plus District of Columbia. Users can download, print, or email the comparison. No other legal research solution provides this statutes compare functionality where a statute has been amended more than once in a single year. Also, only Compare Text enables you to compare text across many different content sets.
- **Litigation Analytics**—View detailed data-driven insights on judges, courts, attorneys, law firms, and case types across most practice areas to develop the best case strategy possible. Superior granularity to filter results by 28 different motion types and even more subtypes, as well as our exclusive, customizable “search within” option to enter your own filter within a filter. Litigation Analytics on Westlaw Edge provides more docket coverage, both federal and state, than any other provider, for the most reliable and targeted insights.

Westlaw also provides legal researchers with access to exclusive resources, proprietary tools, and technology that no other research provider can offer, including:

- **Authoritative content**—With the most trusted primary law resources and leading analytical titles that are cited most often in court—all in one place and always available—researchers have access to all of the relevant information they need to answer a legal question.
- **Attorney-editor enhancements**—For more than a century, our attorney-editors have been analyzing, summarizing, and classifying the law. By developing proprietary innovations like the West Key Number System, KeyCite, headnotes, and Notes of Decisions, we make the content better organized and connected so it’s easier for researchers to find accurate answers quickly.
- **Industry-defining technology**—Our research innovations, such as WestSearch, the award-winning mobile app, Folder Analysis, Research Recommendations, Law Summaries, and Graphical Statutes connect content and our proprietary analysis of the law in unparalleled ways so that legal professionals can conduct research faster and with more accuracy. Advanced, yet intuitive, easy-to-use functionality also helps researchers be more efficient.

EXCLUSIVE CONTENT

- **West Key Number System**—The West Key Number System is the master classification system of U.S. law and is widely regarded as the cornerstone of effective legal research. It helps users to quickly locate and identify cases with the same or similar legal concepts in any jurisdiction in the U.S.
- **National Reporter System**—Since 1879, West’s National Reporter System has compiled and organized federal and state case law into a cohesive body of law that can be researched within and across jurisdictions. West’s National Reporter System is available exclusively on Westlaw.
- **Editorial Enhancements**—For more than a century, West attorney-editors have been providing editorial enhancements to case law, statutes, and other legal materials, which includes providing the

most exhaustive verification and correction process in the legal publishing and information industry. No other research service can match West's editorial experience.

- **PastStat Locator**— With PastStat Locator, users can view prior versions of sections in USCA, as well as prior versions of statutes for select states. In all jurisdictions, PastStat Locator can rebuild the Table of Contents and show how it existed on a particular date. It can also identify when a statute or amendment has a future activation date, or when a statute or amendment is due to lapse.
- **Graphical Statutes/Interactive Timeline**— Graphical Statutes revolutionizes statute research by charting legislative changes and linking related documents in an easy-to-read display. From a single screen, researchers can easily track changes in the law, locate relevant legislative history materials, read important case law, and check for possible amendments. Graphical Statutes is available for USCA and the statutes for select states.
- **Complete Restatements of the Law**—The restatements are principles of black letter law distilled from case law. Restatements on Westlaw provide a section's black letter law, reporter's notes, commentary, illustrations, and annotations in one document. First Restatements of the Law, available exclusively on Westlaw, can help researchers trace the evolution of a law, or an area of law, and aid in the interpretation of older cases that rely on First Restatement sections.
- **Uniform Laws Annotated (ULA)**—The ULA provides an extensive reference to the text of uniform laws, prepared under the sponsorship of the National Conference of Commissioners on Uniform State Laws and the American Law Institute. ULA examines acts recommended for adoption in all states, pinpoints state variations, and includes annotations to cases decided in adopting jurisdictions.
- **Corpus Juris Secundum (CJS)**—CJS helps researchers understand unfamiliar areas of law by providing links to cases, statutes, regulations, key numbers, restatements, and more. CJS covers the full breadth and depth of the law, is cited to tens of thousands times by the courts, and is fully integrated with the West Key Number System.
- **Practical Law**—Practical Law provides legal know-how that gives lawyers a better starting point. Attorney-editors create and maintain thousands of up-to-date, practical resources. We go beyond primary law and traditional legal research to give lawyers the resources needed to practice more efficiently.

EXCLUSIVE FEATURES AND SERVICES

- **Concurring and Dissenting Opinion Shading**—Instantly know if your search language is in the cases' main opinion, or rather in the concurrence or dissent.
- **Procedural Posture**—Our attorney editors identify the procedural motions, requests, and objections made in a case, along with the appellate posture of the case, if any.
- **Research Recommendations**—Based upon documents the user has interacted with during their session, Westlaw will recommend additional primary and secondary law as well as Key Numbers.
- **Snapshots**—Westlaw gives snapshots of companies, legal professionals, and popular statutes.
- **Folder Analysis**—Westlaw makes suggestions, identifying the legal issues present through automatic analysis of cases and statutes in a folder. Users can view additional recommended cases and statutes, see a visual representation of issues, and navigate documents by issue.

- **Research Report**— Westlaw assembles professional reports, summarizing research in users' folders. Users can navigate reports with Table of Contents links, display all notations (including shared notes), and edit notes from the summary screen.
- **Visual Indicators**—Westlaw helps researchers easily determine when they've already viewed or worked with a document. Icons for Already Viewed, Folders, and Notes help researchers to avoid retracing their steps.

Thomson Reuters provides the intelligence, technology, and human expertise you need to find trusted answers in less time. I would be happy to further discuss Westlaw's capabilities with you. If you have any questions concerning this document or require additional information, please do not hesitate to contact me.

Sincerely,

/s/ Reed Flathmann